

Defendant demanded monetary sanctions of \$350.00 but did not give any basis for that figure. Section 2023.040 of the CCP provides:

A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.

Defendant is self-represented. It does not appear any expenses were incurred in the preparation of this motion. He did not submit a declaration setting forth facts supporting his demand for \$350.00 in monetary sanctions.

The motion to compel is denied. The request to have the Requests for Admission deemed admitted is denied because the Request for Admissions was improperly combined with other discovery methods. Plaintiffs served their responses to the interrogatories months ago--thus the court will not compel them to respond at this time. There is no contention that their responses were insufficient. The request for monetary sanctions is denied because there is no factual basis supporting the amount sought.

7. 9:00 AM CASE NUMBER: C25-00782
CASE NAME: AMIN SOBHANI VS. MERCEDEZ-BENZ USA, LLC,
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MERCEDEZ-BENZ USA, LLC,
TENTATIVE RULING

Hearing is continued on the Court's motion to May 1, 2026, 9:00 a.m., Dept. 32.

8. 9:00 AM CASE NUMBER: C25-01567
CASE NAME: ALEXIS DEAN VS. MONTE GARDENS ELEMENTARY SCHOOL (MOUNT DIABLO UNIFIED SCHOOL DISTRICT)
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:
TENTATIVE RULING

Hearing is continued on the Court's motion to January 30, 2026, 9:00 a.m., Dept. 32

9. 9:00 AM CASE NUMBER: C25-01663
CASE NAME: AMBER CLEVELAND VS. DANTE LUCCA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

The unopposed motion of Jason G. Eisenberg to be relieved as counsel for Plaintiff Amber Cleveland is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record.

Counsel Eisenberg is to re-submit the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) with the correction that the next hearing date is a Further Case Management Conference in Dept. 32 on May 4, 2026 at 8:30 am. The court will execute the revised order.

The withdrawal is effective upon Counsel Eisenberg's filing the proof of service of the signed order on his client and all parties.

10. 9:00 AM CASE NUMBER: C25-02058
CASE NAME: BOARDWALK PORT LLC VS. EARTHGRID PBC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: EARTHGRID PBC

TENTATIVE RULING:

Defendant Earthgrid PBC ("EarthGrid") brings the instant general and special demurrer to the complaint of Boardwalk Port LLC ("Boardwalk"). The complaint alleges a claim for breach of written contract/lease agreement. EarthGrid argues that the complaint fails to state facts sufficient to constitute a cause of action because Boardwalk did not attach the complaint, quote it verbatim, or detail the legal effects and obligations relating to the contract, and does not plead sufficient facts to establish Boardwalk's performance or EarthGrid's breach. EarthGrid also argues that these facts make the complaint uncertain.

Boardwalk argues that it properly alleged the substance of the contract's relevant and material terms and adequately pled the legal effect of the lease.

On reply, EarthGrid reiterates its view that Boardwalk was required to attach the contract to the complaint or quote the provision at issue and that Boardwalk's performance was not pled with specificity.